

may at once be set down for the purpose of arguing that question under the following Order :—

That, when the defendant shall by his answer suggest that the bill is defective for want of parties, the Plaintiff shall be at liberty, within fourteen days after answer filed, to set down the cause for argument upon that objection only, and the purpose for which the same is so set down shall be notified by an entry to be made in the Registrar's Book in the form or to the effect following, that is to say, "Set down upon the defendant's objections for want of parties," and that, where the Plaintiff shall not so set down his cause, but shall proceed therewith to a hearing, notwithstanding an objection for want of parties taken by the answer, he shall not at the hearing of the cause, if the defendant's objection shall then be allowed, be entitled as of course to an order for liberty to amend his bill by adding parties, but the Court, if it thinks fit, shall be at liberty to dismiss the bill.

Plaintiff may, within fourteen days set down the cause on question of parties only.

This Order is copied from the English Order 39 of 1841, under which the following cases have been decided. After the lapse of the fourteen days it is said that the Court has no jurisdiction to allow the cause to be set down on the question of parties (*Calvert vs. Gandy*, 1 Phillips, 518 ; *Medhurst vs. Allison*, 4 Hare, 497).

It is not quite clear that the first of these cases would be followed here, because the Judges felt themselves bound by the words of the Act under which the rules were framed ; and there can be no doubt, that, as a general principle, the Court may relax one of its own general rules under special circumstances. The second of the above cases also refers to the terms of an Act of Parliament.

When the plaintiff states the objection in his answer, and claims the same benefit as if he had demurred, the case comes within the rule. (*Grubb vs. Perry*, 7 Jurist, 637 ; *Young vs. Macdonell*, 14 Simons, 34).

The defendant cannot on the argument under this rule take an objection as to parties, which he has not taken by the answer. (*Lovell vs. Andrew*, 11 Jurist, 835).

The answer is taken to be true for the purpose of the objection. (*Richardson vs. Larpent*, 2 Younge and Collyer, 507).